

Comments

Section 145 provides for punishment for drunkenness or nuisance on railway.

146. Obstructing railway servant in his duties:- If any person willfully obstructs or prevents any railway servant in the discharge of his duties, he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Comments

Section 146 provides for punishment for obstruction of railway servant while on duty.

147. Trespass and refusal to desist from trespass:- (1) If any person enters upon or into any part of a railway without lawful authority, or having lawfully entered upon or into such part misuses such property or refuses to leave, he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both:

Provided that in the absence of special and adequate reasons to the contrary to be mentioned in the judgment of the court, such punishment shall not be less than fine of five hundred rupees.

(2) Any person referred to in sub-section (1) may be removed from the railway by any railway servant or by any other person whom such railway servant may call to his aid.

Comments

Section 147 provides for punishment for trespass upon a railway.

148. Penalty for making a false statement in an application for compensation:- If in any application for compensation U/Sec.125, any person makes a statement which is false or which he knows or believes to be false or does not believe to be true, he shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

149. Making a false claim for compensation:- If any person requiring compensation from a railway administration for loss, destruction, damage, deterioration or non-delivery of any consignment makes a claim which is false or which he knows or believes to be false or does not believe to be true, he shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

Comments

Section 148 & 149 respectively provides for punishment for making false claim in case of injury or death of passenger or loss, damage, etc. of goods.

150. Maliciously wrecking or attempting to wreck a train:- (1)

Subject to the provisions of sub-section (2), if any person unlawfully:-

- (a) puts or throws upon or across any railways, any wood, stone or other matter or thing; or
- (b) takes up, removes, loosens or displaces any rail, sleeper or other matter or things matter or things belonging to any railway; or
- (c) turns, moves, unlocks or diverts any points or other machinery belonging to any railway; or
- (d) makes or shows, or hides or removes, any signal or light upon or near to any railway; or
- (e) does or causes to be done or attempts to do any other act or thing in relation to any railway,

with intent or with knowledge that he is likely to endanger the safety of any person traveling on or being upon the railway, he shall be punishable with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years:

Provided that in the absence of special and adequate reasons to the contrary to be mentioned in the judgment of the court, where a person is punishable with rigorous imprisonment such imprisonment shall not be less than:-

- (a) three years, in the case of a conviction for the first offence; and
- (b) seven years, in the case of conviction for the second or subsequent offence.

(2) If any person unlawfully does any act or thing referred to in any of the clauses of sub-section (1) -

- (a) with intent to cause the death of any person and the doing of such act or thing causes the death of any person ; or